

be personally responsible for any loss that may result [*253] sult (*f*). But trustees were held not *to be responsible where they drew a cheque and delivered it to a co-trustee, but crossed with the names of bankers to whom the money was meant to be paid, and to whom it was payable in the due execution of the trust, and the co-trustee (as the Court assumed) erased the crossing and received the money himself; for such receipt was a fraud on the trustees, and not the result of any act of theirs (*a*).

2. *Balchen v. Scott*. — The case of *Balchen v. Scott* (*b*), is no exception to the general rule; for there an executor had received a bill of exchange by the post from a debtor to the estate, and transmitted it to his co-executor, and it was held, that by this proceeding the executor had *not acted* in the trust (*c*), and therefore was no more answerable for the application of the money by the co-executor, than any stranger would have been under similar circumstances.

3. *Churchill v. Hobson*. — In *Churchill v. Hobson* (*d*), an executor had paid 500*l.* into the hands of his co-executor, who misapplied it, and it was ruled by the Court that he was not bound to make it good; but the decision is universally considered as having turned upon the circumstance that the co-executor was a *banker*, and had been trusted by the testator in his lifetime, besides being made his executor at his death (*e*). Lord Harcourt, in his judgment, observed, "The

[(*f*) But in the ordinary course of business trustees may employ brokers and solicitors as their agents without being liable for their acts. "A trustee," said L. J. Lindley, "has no business to cast upon brokers, or solicitors, or anybody else, the duty of performing those trusts and exercising that judgment and discretion which he is bound to perform and exercise himself. On the other hand a trustee is not bound to do everything himself. A trustee is entitled to employ brokers and solicitors to do that which in the ordinary course of business other people would employ brokers and solicitors to do;" and in the same case, L. J. Bowen

said, "The proposition as to trustees and agents that they cannot delegate means this simply — that a man employed to do a thing himself has not the right to get somebody else to do it, but when he is employed to get it done through others he may do so." *Re Speight*, 22 Ch. D. 727, 756, 763; 9 App. Cas. 1.]

(*a*) *Barnard v. Bagshaw*, 3 De G. J. & S. 355.

(*b*) 2 Ves. jun. 678.

(*c*) As the executor had proved the will he would be deemed at the present day to have accepted the trust. See *ante*, p. 201.

(*d*) 1 P. W. 241.

(*e*) See *Harrison v. Graham*, 3